

PASSED

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 13-16

Authorization for Referendum to Ratify a Charter of Incorporation for a Tax Exempt, For-Profit Corporation of the Chickasaw Nation

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature desires to facilitate the business opportunities of the Chickasaw Nation.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves the adoption of a Charter of Incorporation for a tax exempt, for-profit corporation for the Chickasaw Nation, as approved by the Bureau of Indian Affairs, and presents it to the Governor of the Chickasaw Nation for submission to a vote of the electorate in accordance with the requirements of Section 3 of Chapter 831 of the Act of June 26, 1936 (49 Stat. 1967), also known as the Oklahoma Indian Welfare Act, which section is codified at 25 USC s 503.

BE IT FURTHER RESOLVED, that the referendum ballot shall read as follows:

“REFERENDUM BALLOT”

Pursuant to Section 3 of Chapter 831 of the Act of June 26, 1936 (49 Stat. 1967), also known as the Oklahoma Indian Welfare Act, which section is codified at 25 USC Section 503, the Chickasaw Nation desires to create a corporation with the following authorizations:

- The Charter shall establish the Chickasaw Nation Industries, Inc., a Federally Chartered Business Corporation (hereinafter, ‘corporation’).
- The corporation shall be a distinct legal entity pursuant to 25 USC Section 503, wholly owned by the Chickasaw Nation.
- The corporation shall have the same immunity from taxation under federal law as the Chickasaw Nation.
- The corporation shall be empowered to engage in any type of lawful business, enterprise or venture, or any lawful act or activity for which corporations may be organized under the Oklahoma Indian Welfare Act.

Permanent Resolution 13-16

Page 2

- The corporation shall be empowered to have and exercise all powers incidental, necessary or convenient to the conduct of corporate business, not inconsistent with law.
- The corporation shall be empowered to sue in its corporate name and, notwithstanding the immunity possessed by the corporation as a wholly owned corporation of the Chickasaw Nation, to permit by written resolution of the Board of Directors enforcement of leases, contracts, agreements and mortgage instruments to which the corporation is a party, against the corporation in tribal court, or any court of competent jurisdiction by agreement of the Board of Directors; provided, however, that any limited waiver of sovereign immunity granted by the charter does not authorize the levy of any judgement, lien, garnishment or attachment upon any property or income of the corporation, the Chickasaw Nation, or any agency thereto, other than property or income of the corporation specifically and in writing duly mortgaged, pledged or assigned as collateral for the debts or liabilities of the corporation related to the lease, contract, agreement or mortgage instrument to be enforced. The limited waiver of sovereign immunity granted in the charter may not be intended to nor shall it be construed to waive the immunity of the corporation, the Chickasaw Nation or any agency thereof, for any other purpose with respect to any claim or other matter not specifically mentioned therein, and shall not be intended to, nor shall it extend to the benefit of, any person other than the parties to such leases, contracts, agreements or mortgage instruments or their successors or assigns.
- The corporate powers and authorities of the corporation shall be vested in a board of directors which shall consist of between five (5) and nine (9) directors who shall be citizens of the Chickasaw Nation.
- The corporation shall be empowered to make distributions, including dividends, to the Chickasaw Nation.

QUESTION:

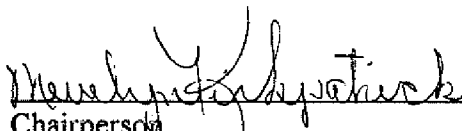
Shall the Chickasaw Nation adopt a Charter of Incorporation, as approved by the Bureau of Indian Affairs, for a corporation as authorized by Section 3 of Chapter 831 of the Act of June 26, 1936 (49 Stat. 1967), also known as the Oklahoma Indian Welfare Act, codified at 25 USC Section 503?

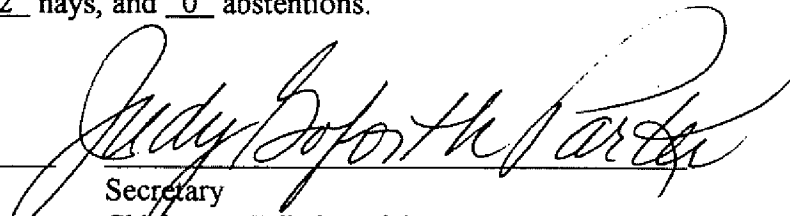
- ☐ Yes
☐ No

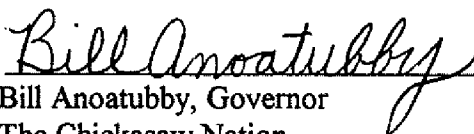
Permanent Resolution 13-16

Page 3

Executed in Special Session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on September 5, 1996, by a vote of 10 yes, 2 nays, and 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: 9-6-96

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 13-16

**Authorization for Referendum to Ratify a Charter of Incorporation
for a Tax Exempt, For-Profit Corporation of the Chickasaw Nation**

Explanation: This resolution approves the adoption of a Charter of Incorporation for a tax exempt, for-profit corporation for the Chickasaw Nation. The corporation will be organized under the provisions of Section 3 of Chapter 831 of the Oklahoma Indian Welfare Act. The resolution also calls for the Governor to submit the charter to the electorate for its approval.

Requested by: Governor Bill Anoatubby
The Chickasaw Nation

Presented by: Rena Duncan, Chairman
Legislative Committee